

Jor Singh v. State of U.P.

Allahabad High Court · Division Bench · 29 October 2015 · Writ-C No. 58711 of 2015 (All.) · WRIT - C No. 58711 of 2015 · **Writ disposed; petitioner relegated to clause 6.5 complaint.**

HEADNOTE

A consumer challenging a recovery notice for outstanding electricity charges, while disputing the quantum of the bill, was relegated to the complaint remedy under clause 6.5 of the U.P. Electricity Supply Code, 2005. The High Court declined to decide a factual billing dispute in writ jurisdiction and directed the competent authority to consider and decide any such complaint in accordance with the Code.

FACTUAL SUMMARY

Jor Singh challenged a 19 June 2015 recovery notice issued under section 3 of the U.P. Recovery of Dues Act, 1958 for Rs. 1,43,460 as outstanding electricity charges. He admitted in his pleadings that he had been unable to pay dues from 2011 to 2014, but disputed the correctness of the demanded amount on various grounds. Counsel for the distribution corporation, on instructions, stated that the outstanding as of September 2015 stood at Rs. 1,71,669.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

[billing-objection-to-executive-engineer-under-6.5](#)

HOLDING

Where a consumer disputes the correctness of outstanding electricity charges that are the subject of a recovery notice, clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a complaint before the competent authority. A writ petition raising a factual billing dispute will be disposed of with liberty to file that complaint, which the authority shall consider and decide in accordance with the Code. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMANDED ELECTRICITY DUES AND LEGALITY OF THE 19 JUNE 2015 RECOVERY NOTICE

The Court treated the dispute as factual and left it to the clause 6.5 authority. ¶ 1